

Approved as to
form only:

Alan

Date: 8/6/19

CITY CONTRACT NO. _____

LEASE AGREEMENT
BETWEEN THE CITY OF CHEYENNE AND THE AIRPORT GOLF CLUB, INC.

This Agreement is made and entered into this _____ day of _____, 2019, by and between the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, hereinafter referred to as the "Lessor," and The Airport Golf Club, Inc., a Wyoming corporation, whose address is 4801 Central Avenue, Cheyenne, Wyoming 82009, hereinafter referred to as "Lessee."

Witnesseth:

1. Lessor, in consideration of the covenants and agreements herein to be kept and performed by Lessee, has leased to Lessee a building currently used as the clubhouse facility at the Cheyenne Airport Golf Course, 4801 Central Avenue, Cheyenne, Wyoming, and a parcel of land being 100.00 feet by 120.00 feet in rectangular dimensions located in the E $\frac{1}{2}$ SE $\frac{1}{4}$, Section 24, T. 14 N., R. 67 W., 6th P.M., within the City of Cheyenne Airport Golf Course, and being more particularly described as follows:

Beginning at the southeast corner of a tract of land which is within the City of Cheyenne Airport Golf Course, said point being N. 32°24' W., a distance of 1451.08 feet from the southeast corner of Section 24, T. 14 N., R. 67 W., 6th P.M.; thence N. 58°55' W., a distance of 120.00 feet to a point; thence S. 31°05' E., a distance of 100.00 feet to a point; thence 58°55' E., a distance of 120.00 feet to a point; thence S. 31°05' W., a distance of 100.00 feet to the point of the beginning. All in the E $\frac{1}{2}$ SE $\frac{1}{4}$, Section 24, T. 14 N., R. 67 W., 6th P.M., City of Cheyenne, Laramie County, Wyoming, and containing 0.275 acres, more or less.

2. The term of this Agreement shall be for a period from September 1, 2019 to August 31, 2069.

3. Lessee shall pay Lessor as rent for the period from September 1, 2019 to August 31, 2069, a sum of Two Hundred Fifty Thousand Dollars (\$250,000.00), which shall be payable in yearly payments of Five Thousand Dollars (\$5,000.00) commencing September 1, 2019 and continuing on or before the same date each year thereafter ending August 31, 2069. The City reserves the right to re-negotiate the rent every ten (10) years by a written agreement between the Lessee and Lessor.

4. Lessee shall pay all taxes on stock of goods and all personal property of Lessee on premises.

5. If Lessee fails to pay any installment of rent promptly on the day when due or shall fail to perform any of the covenants and agreements of this Agreement at the time(s) stated, time expressly being made of the essence of this Agreement, shall continue in any of such defaults for a period of thirty (30) days after written notice thereof by Lessor, Lessor may as often as any such default shall occur.

a. Declare the term ended and enter the leased premises or any part thereof either with or without process of law and expel Lessee or any other person or property occupying the same, using such force as may be necessary to repossess, occupy and enjoy without prejudice to any other remedies of Lessor.

b. Relet the premises applying the rent collected from the new tenant on the lease, Lessee remaining responsible for any deficiency.

The exercise of any one or more of the remedies for default provided for in this Agreement shall not constitute a waiver of the right to exercise any other right provided for whether provided by this Agreement or by the laws of the State of Wyoming now or hereafter in effect, and the aforesaid shall apply no matter how many times any one or more of such remedies shall have been exercised.

6. Lessee has examined and knows the condition of the premises to be leased, and has received the same in good order and repair. No representations as to the condition of the repair thereof has been made that are not herein expressed.

7. Lessor shall keep in good repair the exterior plumbing and access utility lines and pipes, the parking area(s), and parking area lighting. Lessee, at its expense, shall repair any damage or injuries caused by Lessee, its customers, members, invitees, agents or employees. Lessee, except as otherwise provided, shall keep the premises in good repair at its own expense, including any additions or improvements made by Lessor or Lessee and Lessee shall replace all window(s), door(s), or plate glass at Lessee's expense. Upon termination of this Agreement for any reason or at any time, Lessee shall return the premises to Lessor in the same condition and repair as when received by it except for normal wear and tear, loss by fire or other unavoidable casualty and damage by the elements. Lessee shall keep the premises and appurtenances in a neat, clean and healthy condition according to the Cheyenne City Codes and directions of the proper public officials, at Lessee's expense; and Lessor shall maintain the lawn and shrubs around the premises and clean the snow and ice from any walkways in front of and around said premises. Lessee shall keep excessive debris from accumulating on the premises.

8. Lessee shall use the premises only as the clubhouse facility for the Cheyenne Airport Golf Course, for purposes incidental thereto and for no other purpose(s). The Lessee may sell and dispense alcoholic and malt beverages in said building and may apply for and obtain any necessary license(s) for the sale of alcoholic and malt beverages. Lessee may assign this Agreement or sublet the premises incidental thereto, provided said premises shall not be used for any unlawful purpose or for any purpose other than herein specified, and no part of this Agreement or the leased premises may be assigned or sublet for the operation of a golf pro shop without written consent of Lessor, which shall not be unreasonably withheld.

9. Lessee, in the operations to be conducted pursuant to this Agreement, shall not discriminate or permit discrimination against any person or class of persons by reason of race, sex, creed, color, national origin or ancestry, or in any other manner prohibited by law.

10. Lessee may make such improvements of the premises at its own expense as it shall deem proper provided that the structure or appearance of the building shall not materially change. Other alterations must be with the written approval of Lessor. All changes, improvements and alterations shall become part of the building and shall become the property of the Lessor, except that furniture, fixtures and equipment installed by Lessee may be removed by Lessee if no irreparable damage to the property shall result and such damage shall be repaired at the time of removal at Lessee's expense. All changes, improvements, alterations, or the construction of a new building will not be performed without the prior express and written consent of Lessor, which shall not be unreasonably withheld.

11. Lessee agrees not to incur any indebtedness which will or may become a lien or encumbrance upon the leased premises, nor to allow any mechanic's, builder's or materialman's liens to be filed thereon except with the written consent of the Lessor.

12. Lessor shall have free access to the premises for the purpose of examining the same and to make necessary repair or alterations of said premises which Lessor may deem appropriate to make provided that the use of the premises by Lessee shall not be unreasonably impaired thereby.

13. Lessee shall furnish and pay for all janitorial service, electricity, gas, water, sewer, garbage disposal and other utilities for the leased premises, including heat, light, telephone, light bulbs, signs and fixtures.

14. Lessee shall maintain insurance at its own expense on its personal property and all contents owned by it in the building on the premises including liability insurance to protect against damages resulting to third parties from conditions for which Lessee is responsible under this Agreement.

15. Lessee shall maintain insurance on the building located on the premises and agrees to keep the premises insured at its own expense against loss or damage by fire and extended coverage for the full, fair, insurable value thereof.

16. Lessee shall provide the City Clerk for the City of Cheyenne a certificate of insurance effective for the entire term of this Agreement, which evidences of coverage is broad and should state as follows:

- a. Commercial General Liability (Occurrence Form ISO CG0001)

And to specifically include endorsement:

- a. Liquor Liability
- b. Product Liability
- c. Additional Insured – City of Cheyenne, Lessor
- d. If this coverage is written on a “claims made” form, Lessee shall obtain approval from the Lessor.
- e. Lessee shall maintain a limit of liability of \$500,000.00 per occurrence.
- f. Lessee shall advise the Lessor of any deductible for self-insured retention application to the coverage.
- g. Lessee shall immediately notify Lessor through the Office of the City Clerk if the insurance coverage is canceled, terminated or amended during the term of this Agreement.

17. If the premises shall be damaged by fire or other casualty which shall make the premises substantially unusable, the obligation to pay rent shall cease, the Lessor shall have sixty (60) days within which to decide to repair the premises and it shall commence and complete repairs with reasonable dispatch, and if the Lessor shall not commence repair of the premises within sixty (60) days or shall inform Lessee that it does not intend to repair within sixty (60) days, then this Agreement shall be terminated.

18. Lessee agrees to defend, hold harmless, and indemnify the Lessor, its officials, employees and authorized volunteers against any claims arising during or resulting from Lessor's use of premises, except as to the extent that such claims shall arise from the negligence of the Lessor, its officers, agents or employees.

19. Following the end of each calendar year, Lessee will provide to Lessor a written report summarizing the following data:

a. Any material changes to the leased premises conducted during the previous year.

20. If any clause, sentence, paragraph or part of the Agreement, or the application thereof to any person or circumstance, shall for any reason be adjudicated by a court of competent jurisdiction to be invalid, such judgment shall not affect, impair or invalidate the remainder of this Agreement.

21. The parties to this Agreement agree that the covenants and agreements herein contained shall be binding upon, apply and insure to their respective heirs, executors, administrators, successors and assigns.

22. All parties to this Agreement assure that no person shall be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of race, color, disability, national origin, or sex. The parties further assure that it will include the language of this paragraph in all agreements associated or connected in any way with this Agreement and shall cause all existing agreements to similarly include this clause therein.

23. The Lessee is hereby notified that it must comply fully with all requirements of the Equal Employment Opportunity Commission (EEOC) and the Americans with Disabilities Act (ADA) in the same manner as is expected from the City of Cheyenne. If the Lessee or its employees or subcontractors are found in violation of these requirements, this Agreement may be terminated. The Lessee shall be responsible for all such non-compliant action and shall defend, hold harmless and indemnify the City of Cheyenne therefrom.

24. This Agreement contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter. Time is of the essence hereof.

[SIGNATURES ON FOLLOWING PAGE]

IN WITNESS WHEREOF, the parties here to have caused this instrument to be executed as the day and year first above written.

CITY OF CHEYENNE

Marian J. Orr, Mayor

(SEAL)
Attest:

Kristina F. Jones, City Clerk

AIRPORT GOLF CLUB, INC.

(Signature)

Print Name: _____

Title: _____